

		Defendant fails to show it may enforce the arbitration agreement, whether under equitable estoppel, third party beneficiary, agency, or any other doctrine. (See <i>Ford Motor Warranty Cases</i> [<i>Ochoa v. Ford Motor Co.</i>] (2023) 89 Cal.App.5th 1324, review granted [<i>Ochoa</i>]; see also <i>Montemayor v. Ford Motor Company</i> (2023) 92 Cal.App.5th 958 [<i>Montemayor</i>], and <i>Kielar v. Superior Court of Placer County</i> (2023) 94 Cal.App.5th 614 [<i>Kielar</i>].) In granting review of <i>Ochoa</i>, the Supreme Court held the Court of Appeal decision “may be cited, not only for its persuasive value, but also for the limited purpose of establishing the existence of a conflict in authority that would in turn allow trial courts to exercise discretion under <i>Auto Equity Sales, Inc. v. Superior Court</i> (1962) 57 Cal.2d 450, 456, 20 Cal.Rptr. 321, 369 P.2d 937, to choose between sides of any such conflict.” (<i>Ford Motor Warranty Cases</i>, July 19, 2023, order in Case S279969, 532 P.3d 270.) The court finds <i>Ochoa</i>, <i>Montemayor</i>, and <i>Kielar</i> to be more persuasive and better reasoned than <i>Felisilda v. FCA US LLC</i> (2020) 53 Cal.App.5th 486, upon which this court’s prior order compelling arbitration was based. Accordingly, the court reconsiders its prior 2-6-23 order compelling arbitration on its own motion, and now denies defendant Nissan North America, Inc.’s motion to compel arbitration. A Case Management Conference is scheduled for December 4, 2023 in C28 at 9:00 a.m. Plaintiff shall give notice.
55.	Kerns v. On Target Solutions, LLC 2019-01120703	Plaintiff Richard Kerns’ (plaintiff) motions to compel responses to his first set of special interrogatories and deem the matters in his first set of requests for admission admitted are GRANTED. (See Code Civ. Proc., §§ 2030.290, 2033.280.)

		Defendant On Target Solutions, LLC (OTS) is ORDERED to provide verified responses without objections to plaintiff's first set of special interrogatories, within 20 days of notice. The matters specified in plaintiff's second set of requests for admission to defendant OTS (ROA No. 313-Hernandez Decl. at Ex. 1) are hereby DEEMED ADMITTED. Sanctions in the total amount of \$2,572 (consisting of \$1,072 on the motion to compel responses to special interrogatories, and \$1,500 on the motion to deem admitted) are GRANTED in favor of plaintiff and against OTS, payable within 30 days of notice. Plaintiff shall give notice.
56.		
57.		
58.	Graham v. Wakim 2019-01054047	Plaintiff Lorcan Graham's Motion to Quash defendants' Subpoena for Business Records from Chapman University is DENIED. The only basis for this Motion is that the subpoena was untimely under CCP §2024.020. By stipulation of the parties the trial date was continued on June 28, 2023. Since the subpoena for records was served on Chapman University before the first trial date, the court exercise its discretion to permit the discovery to be completed. This ruling applies only to the records from Chapman University. No other discovery may be conducted except in conformance with the parties' Stipulation to continue the trial date. Moving party shall give notice.